

STATE OF NEW YORK

1072--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sens. SERRANO, ADDABBO, BAILEY, JACKSON, KRUEGER, PARKER, ROLISON, STAVISKY -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- recommitted to the Committee on Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to directing the commissioner of education to require public school districts to report on compliance with art education instruction requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The education law is amended by adding a new section 819 to read as follows:

§ 819. Compliance with art education instruction requirements. 1. The commissioner shall create a procedure in which school district compliance with art education instruction requirements as required by law and regulation in elementary and secondary grades in all public schools is reported to the department by each school district. Each such report shall include but not be limited to the following information for each school district:

a. how many and which schools do not have art education instruction as required by law and regulation;

b. the reason or reasons why the schools in paragraph a of this subdivision are not in compliance with art education instruction requirements;

c. the maximum number of students who can receive art education instruction at each school and how many students currently receive art education instruction at each school;

d. how many and which schools do not employ a teacher or teachers certified in art education for art education instruction;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 e. how many and which schools do not provide the class time for art
2 education instruction as required by law and regulation and the reason
3 or reasons why the schools do not provide appropriate time for such
4 instruction; and

5 f. how many and which schools are not in compliance with art education
6 instruction requirements established in law and regulation or are in
7 violation of any art education-related law or regulation.

8 2. Each superintendent of a school district which contains at least
9 one school which is not in compliance with art education instruction
10 requirements established in law and regulation shall:

11 a. prepare a corrective action plan to be reviewed and approved by the
12 board of education at a public meeting; and

13 b. to the extent practicable, begin implementation of such corrective
14 action plan the following school year.

15 3. A list of the school districts that fail to comply with the report-
16 ing requirements in subdivision one of this section shall be posted on
17 the department's website.

18 4. On or before July first, two thousand twenty-seven, and every year
19 thereafter, the commissioner shall report to the governor, the temporary
20 president of the senate, the speaker of the assembly, and the chairs of
21 the senate and assembly committees on education the commissioner's find-
22 ings based on the information reported pursuant to subdivision one of
23 this section, including an analysis and explanation of the data, and
24 shall identify steps that can be taken to ensure that all public schools
25 are in compliance with art education instruction requirements in elemen-
26 tary and secondary grades.

27 § 2. This act shall take effect immediately.